COMMONWEALTH OF KENTUCKY
COURT OF APPEALS

CASE NO. 2024-CA-0556-MR

LOUISVILLE METROPOLITAN GOVERNEMNT	APPEAL FROM JEFFERSON CIRCUIT COURT HON. MELISSA LOGAN BELLOWS CIVIL ACTION NO. 21-CI-006281	**APPELLANT**
V.		
CLINT CHEMICAL AND JANITORIAL SUPPLIES, INC.		**APPELLEE**

BRIEF FOR APPELLANT LOUISVILLE/JEFFERSON COUNTY METROPOLITAN GOVERNMENT

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on the 20th day of August, 2024, Appellant Louisville/Jefferson County Metropolitan Government's Brief was filed via the Electronic Filing System to the Commonwealth of Kentucky Court of Appeals, Kate Morgan, Clerk, 669 Chamberlain Ave., Suite B, Frankfort, KY 40601; and copies were electronically served and/or mailed, via First Class Mail, postage prepaid upon: Hon. Melissa Logan Bellows, Judge, Jefferson Circuit Court, Division Seven, 700 West Jefferson Street, Louisville, KY 40202; and Hon. Oliver H. Barber, Jr., 802 Lily Creek Rd., Louisville KY, 40299; I hereby further certify that the record on appeal has been returned to the Clerk of the Jefferson Circuit Court.

/s/ *Richard Elder*
Richard Elder

INTRODUCTION

The issue in this appeal is whether the trial court erred in permitting Plaintiff's claim for a breach of the implied covenant of good faith and fair dealing to proceed to trial against Louisville Metro Government. As a sovereign entity, Louisville Metro Government is immune from that claim.

STATEMENT CONCERNING ORAL ARGUMENT

Given the well-established law concerning sovereign immunity, Appellant does not request oral argument.

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STATEMENT OF THE CASE

On March 19, 2019, Plaintiff, Clint Chemical and Janitorial Supplies, Inc. ("Plaintiff") entered a contract with Defendant, Louisville/Jefferson County Metropolitan Government ("Metro"), on behalf of the Louisville Metropolitan Department of Corrections ("LMDC") to provide a specified list of janitorial items for LMDC's use.[1] (Complaint, TR 1-7). Simultaneously, a separate contract for a discrete list of janitorial supply items was awarded to Leonard Brush and Chemical Company ("Leonard Brush"). (*Id.* at 2). The contract was for a period of one (1) year, with annual renewal options for up to five (5) years total. (*See* Memorandum in Support of Motion for Partial Summary Judgment, TR 613-638, at 616). Those renewal options were subsequently exercised twice, so that the entire length of the contract was for three (3) years, from March of 2019 through March of 2022. (*Id.* at 617-618).

Plaintiff filed its initial Complaint on November 4, 2021, while the contract was still in effect, and alleged that LMDC and Metro failed to purchase Plaintiff's contract-exclusive items from Plaintiff as required, and instead purchased those items from others, including Leonard Brush. (Complaint, TR 1-7 at 3-5). Plaintiff named Metro and LMDC as Defendants. (*Id.* at 1). The only claim asserted in Plaintiff's initial Complaint was for breach of contract (*Id.*).

Metro filed an Answer on November 29, 2021, and denied liability (*See* Answer, TR 15-20). Simultaneously, LMDC moved to dismiss the Complaint against it on the grounds that it was not a suable entity. (Motion to Dismiss, TR 47-48; Memorandum in Support of Motion to Dismiss; TR 33-36). The trial court granted LMDC's Motion to Dismiss over the objection of the Plaintiff. (Dismissal Order, TR 92-93; Opinion and Order Dismissing, TR 94-96). Metro filed a First Amended Answer on December 9, 2019, and a Second Amended Answer on June 10, 2022, asserting additional defenses. (First Amended Answer, TR 51-57; Second Amended Answer, TR 115-123).

[1]There is extensive procedural history that is not relevant to this limited interlocutory appeal and will therefore not be recounted in this pleading.

On April 5, 2023, Plaintiff sought leave of the trial court to file an Amended Complaint, which asserted claims for fraud, for intentional interference with contract, and for breach of the implied covenant of good faith and fair dealing. (Motion to Amend Complaint, TR 203-204; Amended Complaint, TR 200-202).[2] Plaintiff also requested punitive damages (*Id.*) The claims were asserted against Metro and against LMDC, despite LMDC's previous dismissal. (*Id.*) Metro objected to the amendment on the basis that Plaintiff's proposed amended complaint was futile and could not withstand a CR 12.02(f) motion to dismiss for failure to state a claim. (Response to Plaintiff's Motion to Amend Complaint, TR 207-213). The trial court granted Plaintiff's Motion to Amend on April 24, 2023. (Order Granting, TR 233).

On May 10, 2023, Metro moved to dismiss Plaintiff's amended complaint for failure to state a claim upon which relief could be granted. (Motion to Dismiss; TR 285; Memorandum in Support of Motion to Dismiss, TR 245-280). Metro asserted three independent grounds for dismissal, and tendered a proposed dismissal order as to each: 1) The new claims against Metro were barred by sovereign immunity, including the claim for breach of the implied covenant of good faith and fair dealing ("Proposed Dismissal Order No. 1", TR 280-81); 2) LMDC remained a non-suable entity and had previously been dismissed on that basis ("Proposed Dismissal Order No. 2", TR 282); and 3) Plaintiff's claims for fraud and tortious interference with contract failed to state a claim for relief because those claims are inapplicable to the case at bar ("Proposed Dismissal Order No. 3, TR 283).

On May 15, 2023, before Plaintiff filed any response, the trial court partially granted Metro's Motion to Dismiss by signing and entering Proposed Dismissal Order No. 2 (dismissing LMDC) and Proposed Dismissal Order No. 3 (dismissing the fraud and tortious interference claims). (*See* Orders of Dismissal, TR 287-289). Metro's assertion of sovereign immunity (Proposed Dismissal Order No. 1) was not addressed.

[2]Plaintiff's proposed Amended Complaints were not chronologically labeled, and so will be referred to by filing date.

At a pretrial conference on May 31, 2023, the parties discussed the foregoing motion practice, including that the Court had not ruled on the Motion to Dismiss as it related to Metro's assertion of sovereign immunity. (VR, 5/31/23 at 11:05:00-11:07:00). Metro also stated its position that it was prepared to accept a trial only as to the breach of contract claims, but if any of Plaintiff's new claims were permitted, Metro would not be prepared to set the case for trial. (*Id.*) Plaintiff's counsel responded that he believed his Motion to Amend had been dismissed in its entirety and agreed to respond to the sovereign immunity issue. (*Id.* at 11:09:43-11:10:01).

On June 20, 2023, Plaintiff filed what it styled as its Response to Metro's previous Motion to Dismiss. (Response to Motion to Dismiss, TR 425-428). However, Plaintiff's Response did not address Metro's Motion to Dismiss or any of the claims asserted in Plaintiff's April 5, 2023, proposed Amended Complaint, and instead sought to file an additional Amended Complaint to assert claims for violation of the Kentucky Model Procurement Code and the Kentucky Civil Rights Act. (*Id.*). Metro pointed this out in a Reply and reiterated the Court had not ruled on Metro's assertion of sovereign immunity. (Reply in Support of Motion to Dismiss, TR 440-445).

At a pretrial conference on July 20, 2023, Metro reiterated that the good faith and fair dealing claim was still outstanding, (VR, 7/2023 at 1:28:36-1:31:41). When asked about why its Response to the Motion to dismiss was instead a Motion to Amend, counsel for Plaintiff responded again that he believed the entire April 5, 2023 proposed Amended Complaint had been dismissed. (*Id.* at 1:34:56-1:35:24). Plaintiff was directed to file a formal Motion to file a Second Amended Complaint. (*Id.* at 1:36:16-1:36:44).

Plaintiff filed that Motion to Amend on August 1, 2023, and reasserted the Civil Rights Act and Model Procurement Code claims initially asserted in Plaintiff's June 20, 2023 Response. (Motion to Amend Complaint, TR 498-504; Amended Complaint, TR 513-515). On August 10, 2023, Metro objected to the proposed amendment both on the grounds that Plaintiff's Civil Rights and Procurement Code claims failed to state a claim for relief, and that Plaintiff should be barred from seeking a late-stage amendment nearly

two years into the lawsuit without sufficient excuse for the delay. (*See* Response and Objection, TR 550-559).

The trial court denied Plaintiff's August 1, 2023, Motion to Amend on September 26, 2023, on the grounds that Plaintiff's proposed amendment was not timely. (Opinion and Order, TR 604-606). The trial court declined to address whether Plaintiff's Procurement Code and Civil Rights Act claims were legally viable and invited Plaintiff to pursue them elsewhere.[3] The parties set the matter for trial in May of 2024. (*See* Trial Order, TR 610-612).

Metro moved for partial summary judgment on February 23, 2024. (Motion for Partial Summary Judgment, TR 861-862; Memorandum in Support of Motion for Partial Summary Judgment, TR 613-638).[4] Plaintiff responded in opposition, and in relevant part reasserted its claim for the breach of the covenant of good faith and fair dealing, despite previously asserting that claim had been dismissed. (Response to Motion for Partial Summary Judgment, TR 865-874 at 872-73). In Reply, Metro yet again reiterated the good faith and fair dealing claim was barred by sovereign immunity. (Reply in Support, TR 908-913 at 911-912). The trial court ruled on the motion for partial summary judgment on April 17, 2023. (Opinion and Order, TR 959-964). The trial court's Opinion did not address the good faith and fair dealing claim or sovereign immunity. (*Id.*)

In compliance with the trial court's jury trial order, Metro filed its pretrial motions in limine on April 16, 2024 (Motions in Limine, TR 939-949). These motions included a motion to bar Plaintiff from asserting a breach of the implied covenant of good faith and fair dealing at trial because that claim was barred by sovereign immunity and because

[3]Following the trial court's ruling, Plaintiff did file claims for violations of the KCRA and the Kentucky Model Procurement Code in a separate lawsuit. *See* Clint Chemical and Janitorial Supplies, Inc., v. Louisville Metro Government, Jefferson Circuit Case No. 24-CI-00035. Metro again asserted that these claims failed to state a claim for relief, and a separate trial court dismissed the complaint therein with prejudice on May 28, 2024. *See* Order of Dismissal. Pursuant to KRE 201, a Court of Appeals can take judicial notice of public Court records, although appellate courts are to do so "cautiously". *See Commonwealth v. Ivy*, 353 S.W.3d 324, 335 (Ky. 2011). Plaintiff did not appeal that dismissal.

[4]The grounds Metro asserted for partial summary judgment are numerous, primarily pertain to damages, and so are not at issue in this limited appeal. Metro did not move for summary judgment on the good faith and fair dealing claim because its Motion to Dismiss that claim stood unopposed.

Metro relied on Plaintiff's assertion that this claim was dismissed in accepting the trial date. (*Id.* at 942). Plaintiff opposed that motion only as follows: "Good faith and fair dealing still apply. Louisville Metro Employees were not even sure what it meant to 'suspend the rules' for purchases, or whatever one calls it." (Plaintiff's Response to Defendant's Motions in Limine, TR 969-973 at 971). The trial court denied that motion without explanation on May 1, 2024. (*See* Order, TR 1215-1216). This interlocutory appeal followed.

ARGUMENT

I. STANDARD OF REVIEW

Dismissal for failure to state a claim upon which relief can be granted is necessary when it appears beyond doubt that the complaint sets forth no set of facts, which if proved, would entitle the plaintiff to relief. CR 12.02; *Pari-Mutuel Clerks' Union of Kentucky, Local 541, SEIU, AFL-CIO v. Kentucky Jockey Club*, 551 S.W.2d 801, 803 (Ky. 1977); *Wood v. Wyeth-Ayerst Laboratories*, 82 S.W.3d 849, 851 (Ky. 2002). "In determining whether a complaint should be dismissed, the issue is a matter of law." *Grand Communities, Ltd. v. Stepner*, 170 S.W.3d 411, 417 (Ky. App. 2004), *rev. denied* (2005).

The issue of whether a defendant is entitled to the defense of sovereign immunity is a question of law. *Rowan County v. Sloas*, 201 S.W.3d 469, 475 (Ky. 2006) (citing *Jefferson County Fiscal Court v. Peerce*, 132 S.W.3d 824, 833 (Ky. 2004)). Questions of law are reviewed de novo. *Jacobi v. Holbert*, 553 S.W.3d 246, 252 (Ky. 2018).

II. METRO IS AN IMMUNE ENTITY

The Kentucky Constitution recognizes sovereign immunity for the Commonwealth: "The General Assembly may, by law, direct in what manner and in what courts suits may be brought against the Commonwealth." Ky. Const. § 231. "Sovereign immunity is a bedrock component of the American governmental ideal, and is a holdover from the earliest days of the Commonwealth, having been brought over from the English common law." *Caneyville Volunteer Fire Dep't v. Green's Motorcycle Salvage, Inc.*, 286

S.W.3d 790, 799 (Ky. 2009). "This principle was recognized as applicable to the Commonwealth of Kentucky as early as 1828." *Yanero v. Davis*, 65 S.W.3d 510, 517 (Ky. 2001). "Sovereign immunity is 'deeply implanted in the law of the Commonwealth through Section 231 of the Kentucky Constitution.'" *Withers v. University of Kentucky*, 939 S.W.2d 340, 344 (Ky. 1997) (quoting *Kestler v. Transit Authority of Northern Kentucky*, 758 S.W.2d 38 (Ky. 1988)).

Sovereign immunity is an absolute immunity which protects not only from liability, but from the burdens of litigation. *Lexington-Fayette Urban County Government v. Smolcic*. 142 S.W.3d 128, 135 (Ky. 2004). Sovereign immunity exists for the benefit of the public, thereby permitting the government to concentrate its resources and energies for the benefit of its citizens, and to exercise fully independent judgment, free of any concerns of actual or potential litigation. *Id.*

Appellate Courts have interlocutory jurisdiction over the denial of sovereign immunity. *Louisville Metro Government v. Cowan*, 508 S.W.3d 107, 109 (Ky. App. 2016) (citing *Breathitt County Board of Education v. Prater*, 292 S.W.3d 883, 887 (Ky. 2009) ("[A]n order denying a substantial claim of absolute immunity is immediately appealable even in the absence of a final judgment.")). This interlocutory review is permitted because that immunity entitles its possessor to be free "from the burdens of defending the action, not merely from liability." *Id.* at 886. The scope of an interlocutory appeal involving sovereign immunity is limited to the issue of immunity and nothing more. *Baker v. Fields*, 543 S.W.3d 575, 578 (Ky. 2018). *Schwindel v. Meade County*, 113 S.W.3d 159, 163 (Ky. 2003). "This immunity flows from the Commonwealth's inherent immunity by virtue of a Kentucky county's status as an arm or political subdivision of the Commonwealth." *Smolcic*, 142 S.W.3d at 132.

It is well-settled that "[a] county government is cloaked with sovereign immunity." Metro is a consolidated urban/county government. *See* KRS 67C.101 *et seq.* "A consolidated local government shall be accorded the same sovereign immunity granted counties, their agencies, officers, and employees." KRS 67C.101(2)(e) (emphasis added).

Metro's sovereign immunity has been repeatedly affirmed by the courts of the Commonwealth: "Louisville Metro maintains sovereign immunity." *Bryant v. Louisville Metro Housing Authority*, 568 S.W.3d 839, 845 (Ky. 2019); "As a consolidated local government, [Louisville Metro] enjoys the same absolute sovereign immunity afforded counties." *A.H. v. Louisville Metro Government*, 612 S.W.3d 902, 909 (Ky. 2020); "Louisville Metro is a government entity entitled to sovereign immunity." *Ruplinger v. Louisville/Jefferson County Metro Government*, 607 S.W.3d 583, 585 (Ky. 2020). *See also Meinhart v. Louisville Metro Government*, 627 S.W.3d 824, 831 (Ky. 2021).

It is therefore well-settled Metro is immune unless its immunity was waived. Metro repeatedly asserted sovereign immunity from the claims Plaintiff asserted in its April 5, 2023, Motion to Amend: fraud, tortious interference with contract, and a breach of the implied covenant of good faith and fair dealing.[5] The good faith and fair dealing claim was allowed to proceed to trial despite Metro's assertion of immunity. This was a de facto determination that Metro is not immune, because sovereign immunity is an immunity from the burden of defending the action at all, *Prater*, 292 S.W.3d at 886. The trial court therefore erred in allowing that claim to proceed to the jury unless it determined that immunity was waived. The trial court made no such finding, and as discussed below, no such waiver exists.

III. METRO IS IMMUNE FROM PLAINITFF'S CLAIMS

Sovereign immunity can only be waived by Kentucky's legislature. *Department of Corrections v. Furr*, 23 S.W.3d 615, 616 (Ky. 2000). "It is the province of the General Assembly to waive immunity, if at all, and only to the extent it sees fit." *Transportation Cabinet v. Roof*, Ky, 913 S.W.2d 322, 325 (1996). Kentucky courts will find waiver in only two circumstances: when the waiver is made "by the most express language" or when it is made "by such overwhelming implications from the text as will leave no room for any other reasonable construction." *Withers*, 939 S.W.2d at 346 (internal citations omitted) (emphasis added).

[5]Since the trial court dismissed the fraud and tortious interference claims for failure to state a claim, Metro's immunity as to those claims is not at issue here.

"[A]bsent an explicit statutory waiver, Metro Government is entitled to sovereign immunity." *Jewish Hosp. Healthcare Servs., Inc. v. Louisville/Jefferson County Metro Government*, 270 S.W.3d 904, 907 (Ky. App. 2008) (emphasis added). "The line demarcating where the doctrine of sovereign immunity applied and where it did not apply was long drawn in shifting sands before we chiseled the line in stone in *Withers*." *Furr*, 23 S.W.3d at 616.

Kentucky courts have taken a restrictive view on whether a statutory waiver of sovereign immunity is present. "Statutes in derogation of the state's sovereign immunity will be strictly construed in favor of the state unless the intention of the legislature to do otherwise is clearly expressed in the statute." *Louisville Arena Authority, Inc. v. RAM Engineering & Construction, Inc.*, 415 S.W.3d 671, 680 (Ky. App. 2013) (quoting *Jones v. Cross*, 260 S.W.3d 343, 345 (Ky. 2008)) (emphasis added). "Consequently, a waiver of sovereign immunity cannot be assumed by the courts." *Id.* "Once it has been determined that an entity is entitled to sovereign immunity, this Court has no right to merely refuse to apply it or abrogate the legal doctrine." *Withers*, 939 S.W.2d at 344 (citing *Fryman v. Harrison, Ky.*, 896 S.W.2d 908 (1995)). Sovereign immunity applies to breach of contract claims and tort claims. *Ammerman v. Board of Education*, 30 S.W.3d 793 (Ky. 2000).

A claim for breach of the implied covenant of good faith and fair dealing is a tort claim and is barred by sovereign immunity. *See University of Louisville v. Bohm*, 2017-CA-0935-MR, 2019 WL 1422912 at *6 (Ky. App., March 29, 2019). "The sovereign state cannot be held liable in a court of law for either intentional or unintentional torts." *Id.* (citing *Calvert Investments, Inc., v. Louisville Jefferson County Metro Sewer District*, 805 S.W.3d 133, 139. (Ky. 1991). In *Bohm*, this Court held that a university professor's claim for breach of the implied covenant of good faith and fair dealing was barred by sovereign immunity, despite the existence of a valid employment contract. *Id.* at *6. The Court also held the limited waiver of sovereign immunity embodied in the Kentucky Model Procurement Code did not permit this claim. *Id.*

Consistent with *Bohm*, Kentucky's higher courts have often held that derivative claims that flow from a contract or quasi-contract are barred by sovereign immunity. *See,*

e.g., Commonwealth v. Samaritan Alliance, 439 S.W.3d 757, (Ky. App. 2014) (assertion of fraud claim for damages from contractual dispute barred by sovereign immunity); *Franklin-Simpson County Board of Adjustment v. Drakes Creek Holding*, 603 S.W.3d 687 (Ky. App. 2020) (zoning board was entitled to governmental immunity from tortious interference and detrimental reliance claims); *Lipson v. University of Louisville*, 556 S.W.3d 18, 28 (Ky. App 2018) (unjust enrichment claim barred by sovereign immunity).

While unpublished, this Court's holding in *Bohm* is directly applicable to the case at bar. The tort-based claim asserted by Plaintiff should not have been permitted to proceed alongside the claims of breach. Further, despite its repeated assertions of this claim, Plaintiff has cited no statute, caselaw, or any other authority that permits a claim for a breach of the implied covenant of good faith and fair dealing against a sovereign entity. Other than a conclusory statement that "good faith applies", Plaintiff has not even opposed Metro's assertion of sovereign immunity. No such waiver exists. Because sovereign immunity applies and has not been waived, the trial court erred in permitting those claims to proceed to trial. Accordingly, Metro respectfully requests that this case be remanded to the trial court with instruction to dismiss Plaintiff's claims for breach of the implied covenant of good faith and fair dealing, which would consequently allow Plaintiff's breach of contract claims to proceed to trial.

CONCLUSION

For the foregoing reasons, Appellant respectfully requests that this Court reverse the trial court's finding Metro is not entitled to sovereign immunity from claims of the breach of the implied covenant of good faith and fair dealing and instruct the trial court to dismiss that claim with prejudice.

APPENDIX

Exhibit 1: Order on Defendant's Motions in Limine

Exhibit 2: Orders of Partial Dismissal

Respectfully submitted,

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